Stalkers also do not conform to any fixed profile, or strict economic, social or age criteria. Of the total 8,240 persons arrested in 2021 for stalking, 124 were juveniles, while the majority of the accused were in the 18-30 age group. But there were 3,196 men arrested in the age bracket of 30-45 years and 806 were aged between 45 and 60 years. "Stalkers have been noticed to hallucinate and struggle with personality disorders," says Prasad. "They also have a horribly misplaced sense of justice. They always justify their stalking of a girl, which they believe is their legitimate right."

In July, Mumbai police arrested 28-year-old Bollywood struggler Manvinder Singh, from Gorakhpur in Uttar Pradesh, for stalking Katrina Kaif and her husband Vicky Kaushal. Singh, who wanted to marry Katrina, had been posting morphed videos and pictures of himself with the actress on social media. According to behavioural therapists, this kind of stalker suffers from erotomania, a delusion that leads them to believe that another person—often a celebrity—is in love with them.

However, not all stalkers have mental health conditions. Cultural and gender norms may also contribute to stalking behaviour. The digital era comes with a surfeit of both stimuli such as porn and tools of pursuit in the guise of social media platforms for the stalker.

THREAT OF CYBERSTALKING

Cyberstalking, in fact, has become a whole new threat. The abundance of cases only confirms the trend. On September 3, Aas Mohammad, a 21-year-old contract cook for the army in Delhi, was arrested for cyberstalking a 17-year-old girl. He first befriended the minor on social media, introducing himself as a soldier. When the girl stopped talking to him after discovering his identity, he started harassing and defaming her by creating fake social media accounts in her name. He allegedly abused her friends and teachers on social media through these fake profiles, and sent them vulgar messages.

In August, a Kolkata teacher was asked to resign because her student's father caught him ogling at her bikini-clad pictures on his mobile phone. She had posted the pictures on her private Instagram account in April 2021, two months before she had joined St Xavier's University. "The only way such Instagram stories can be accessed by other parties is by hacking or if someone had taken screenshots of such pictures and posted and circulated them," read the teacher's police complaint. It is indeed intriguing how a picture on a private Instagram account with a shelf-life of 24 hours for followers became available and widely circulated seven months after she had posted it. It couldn't have been anything but cyberstalking, the experts are convinced.

The question is, why despite a specific provision has the law failed to act as a deterrent? Is it because the police lack the training to handle such cases? A top police officer in Patna admits a primary tendency to settle such things at the police station level. "The cops there are not best equipped or informed in such cases where at times one needs medical intervention or at least constant counselling of the accused. There are several cases in which the stalkers, who may well be afflicted with personality disorders, have returned to harm the victim after initially promising not to stalk," he says. A case in point: In July last year, a 24-year-old BDS student was allegedly shot dead by her stalker Rakhil, 32, who shot himself and died moments later in Ernakulam district of Kerala. Just a month earlier, the police had let Rakhil off after he promised to stop harassing his victim.

NOT ALL STALKERS HAVE MENTAL HEALTH CONDITIONS. CULTURAL AND GENDER NORMS MAY CONTRIBUTE TO STALKING BEHAVIOUR

However, the indifference of policemen is but one aspect of the problem. Sociologists point to broader issues such as gender insensitivity, a conservative patriarchal mindset and schools and families failing to inculcate the right values. Prof. Gyanendra Yadav, who teaches sociology at Patna University, considers it a primary reason for the rise in the crime. "The indifference of parents of the boys towards stalking is a significant factor. There is also the perceived taint a girl or her parents fear a complaint could cause. So, the girls usually avoid making complaints when it happens, which bolsters the stalker."

PERIL AND THE PUNISHMENT

There are both long-term and short-term ramifications of stalking, which can take a very serious turn. Stalking impacts its victims on both emotional and physical levels. Besides fear, trauma and a reduction in quality of life, victims and their families at times may get depressed or feel hopeless.

Patna High Court lawyer Sanjeev Kumar argues against the decision of making the first offence of stalking "bailable". This is problematic as it allows too much leeway or power to the cops to settle cases, he feels. "In cases where cops can become subjective, coupled with the fact that victims' parents also look for settlements, there is a possibility that stalkers can get off the hook," he says.

Kumar also stresses parity in the penal provisions. Similar offences like Section 354 (criminal force or assault with intent to outrage modesty) and criminal intimidation with the threat to cause death or grievous hurt (Section 506) are non-bailable. Stalking per se is not entirely different in nature, so there is always an argument to either make it non-bailable or tag it with criminal intimidation.

Based on the severity of the offences, some states in the US, the UK, Australia and elsewhere have made provisions for restraining orders on stalkers or for their surveillance. India, too, can re-examine its penal provisions. ■

with Sonali Acharjee and Romita Datta